

4.	30-2025-01491450 Stahl vs. Volkswagen Group of America, Inc	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Deem Facts Admitted <i>Form Interrogatories, Set One</i> Defendant, Volkswagen Group of America, Inc. (“VWGOA”), moves for an order compelling Plaintiff, Kathleen A. Stahl (“Plaintiff”) to provide verified responses to Form Interrogatories, Set One, and for an order for monetary sanctions in the amount of \$1,837.50 against Plaintiff and her counsel of record, Strategic Legal Practices. In reply, VWGOA acknowledges that Plaintiff served verified responses to VWGOA’s Form Interrogatories, Set One, at the end of June, such that the motion to compel responses is now MOOT. As such, the motion is DENIED. At issue is VWGOA’s request for sanctions pursuant to Code of Civil Procedure sections 2030.290(c) and 2023.030(a). “[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2030.290(c).) Additionally, the court may impose a monetary sanction ordering that one engaging in conduct that is a misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, included attorney’s fees incurred as a result of that conduct. (Code Civ. Proc. § 2023.030(a).) The court shall impose a monetary sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>) Misuses of the discovery process include “[f]ailing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc. § 2023.010(d).) Here, VWGOA provides that on March 25, 2026, the agreed-upon extended deadline for responses, Plaintiff served unverified, objection-only responses. (ROA 40, Declaration of Lindsey M. Espinosa, ¶¶ 3-5.) While VWGOA argues that these unverified responses are tantamount to no responses at all, such that Plaintiff failed to serve responses, a response with nothing other than objections does not need to be verified, and only the attorney’s signature is required. (Code Civ. Proc. § 2030.250(a), (c).) Under these circumstances, the instant motion is not properly brought under Code of Civil Procedure section 2030.290, there was no failure to respond, and no basis for sanctions. VWGOA’s request for monetary sanctions is DENIED. <i>Deem Requests for Admission, Set One, Admitted</i> Defendant, Volkswagen Group of America, Inc. (“VWGOA”), moves for an order that the truth of each matter specified in VWGOA’s First Set of Requests for Admission be deemed admitted and conclusively established for all purposes in this action, and for an order for monetary sanctions in the amount of \$2,035 against Plaintiff, Kathleen A. Stahl (“Plaintiff”), and her counsel of record, Strategic Legal Practices. In reply, VWGOA acknowledges that Plaintiff served verified responses to VWGOA’s Requests for Admission, Set One, at the end of June, such that the instant motion is now MOOT. As such, the motion is DENIED.
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		What remains is VWGOA’s request for sanctions pursuant to Code of Civil Procedure sections 2033.280(c) and 2023.030(a). For a motion to deem requests for admission admitted, it is mandatory for the court to impose a monetary sanction on the party or attorney, or both, who failed to serve timely responses to the requests for admission, and thus necessitated the motion. (Code Civ. Proc. § 2033.280(c).) Like the motion to compel responses to Form Interrogatories above, VWGOA provides that on March 25, 2026, the agreed-upon extended deadline for responses, Plaintiff served unverified, objection-only responses. (ROA 54, Declaration of Lindsey M. Espinosa, ¶¶ 3-5.) Similarly, VWGOA argues that these unverified responses are tantamount to no responses at all, such that Plaintiff failed to serve responses. However, objection-only responses need not be verified. “The party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections.” (Code Civ. Proc. § 2033.240(a).) “The attorney for the responding party shall sign any response that contains an objection.” (Code Civ. Proc. § 2033.240(c).) Under these circumstances, the instant motion is not properly brought under Code of Civil Procedure section 2033.280, there was no failure to respond, and no basis for sanctions. VWGOA’s request for monetary sanctions is DENIED. Plaintiff to give notice.
5.	30-2025-01456399 Rodriguez vs. Santa Ana Unified School District	1. Motion to Compel Answers to Form Interrogatories Plaintiff Jared Rodriguez (“Plaintiff”) moves to compel Defendant Julian Orozco (“Defendant”) to provide further responses to Form Interrogatories Nos. 2.5, 4.1, 11.1, 11.2, and 12.1. The parties appear to agree that Defendant provided supplemental responses after the motion was filed. (See Opposition at p. 2:12-15 and Reply at p. 1:1-28.) Neither party provided the Court with a copy of the verified supplemental responses that Defendant provided on 07/16/2026. As such, the Court is unable to determine the sufficiency of such responses. (See <i>County of San Benito v. Superior Court</i> (2023) 96 Cal.App.5th 243, 256 [permitting the Court to determine if the further responses provided after the motion was filed were sufficient when the further responses were submitted with the opposition or reply papers].) For this reason, the Court finds that the motion is MOOT as to the responses at issue in the motion since further responses were provided on 07/16/2026. Plaintiff may file an additional motion to compel further responses based on the 07/16/2026 supplemental responses pursuant to code – the deadline to file such a motion has not yet passed. Still, the Court finds reduced sanctions are appropriate as it was only <i>after</i> Plaintiff filed the motion to compel that Defendant provided further responses. Accordingly, Plaintiff’s request for sanctions is GRANTED in the reduced amount of \$810 (1.5 hours at \$500/hour = \$750 plus \$60 filing fee). Plaintiff to give notice.